

Mohammad Ali v. State of U.P.

Allahabad High Court · Division Bench · 3 February 2015 · Criminal Misc. Writ Petition No. 2725 of 2015 · Criminal Misc. Writ Petition No. 2725 of 2015 · **FIR quash refused; CrPC arrest safeguards directed; compounding under Supply Code left to petitioner**

HEADNOTE

An FIR under section 135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. Arrest not having been made, apprehension of breach of CrPC arrest safeguards is premature; if arrest is to be effected for an offence not entailing more than seven years' imprisonment, the police must comply with section 41(1)(b) read with section 41-A CrPC. If the offence is compoundable, the accused may seek the remedy under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Mohammad Ali filed a criminal miscellaneous writ petition to quash the FIR dated 28 December 2014 registered as Case Crime No. 563 of 2014 under section 135 of the Electricity Act, 2003 at Police Station Mughalsarai, District Chandauli. Counsel for the U.P. Power Corporation appeared. The petitioner had not been arrested. He argued that the alleged offence could not attract a sentence of more than seven years, so arrest should not be mechanical, and that the offence was compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

quashing of s.135 FIR; arrest safeguards; compounding

HOLDING

An FIR under section 135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. Where arrest has not yet been made, the accused's apprehension of illegal arrest is premature, but if arrest is to be effected for an offence not entailing sentence of more than seven years, the police must comply with section 41(1)(b) read with section 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 3-6

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy

Quash of a s.135 FIR refused because it disclosed a cognizable offence; any arrest for an offence not entailing more than seven years must follow CrPC 41(1)(b)/41-A; compounding, if available, is to be sought under the Electricity Supply Code, 2005. ¶ 3-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135 OFFENCE WAS COMPOUNDABLE ON THE PETITIONER'S FACTS

The Court said only that if the offence is compoundable, the petitioner may seek the Supply Code, 2005 remedy. ¶ 5